

24STCV16089 24STCV16089

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-16

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Case Number: 24STCV16089 Hearing Date: September 16, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

16, 2026 TRIAL DATE: Vacated

CASE: Rodney Richard, et al. v. The S Avenue Trust, et al.

CASE NO.: 24STCV16089

PLAINTIFFS'

MOTION PURSUANT TO CIVIL PROCEDURE CODE SECTION 377.31

MOVING PARTY: Petitioner

Lanisha Sharon Sims, as Successor in Interest of the Estate of Plaintiff

Latonia Green

RESPONDING PARTY: No opposition

I. BACKGROUND

On June 27, 2026, Plaintiffs, Latonia Green ("Green"), Rodney Richard, and Irani Springer, commenced this habitability against Defendants, The S Avenue Trust, 6 Angels LLC, and BMC Cub LLC.

On January 26, 2026, Ms. Green passed away.

On July 1, 2025, Petitioner Lanisha Sharon Sims filed this motion for an order substituting herself as Ms. Green's successor in interest.

The motion is unopposed.

II. LEGAL STANDARD

"A pending action or proceeding does not abate by the death of a party if the cause of action survives." (Code Civ. Proc., § 377.21.) "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.)

The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating: (1) The decedent's name, (2) The date and place of the decedent's death, (3) "No proceeding is now pending in California for administration of the decedent's estate," (4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest, (5) Either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding"; (B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding"; (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding," and (7) the statements are true, under penalty of perjury. (Code Civ. Proc., § 377.32.)

A

certified copy of the decedent's death certificate shall be attached to the affidavit or declaration.¿ (Code Civ. Proc., § 377.32, subd. (c).)

III. DISCUSSION

Upon review of the papers, the court finds the Declaration of Lanisha Sharon Sims does not comply with the requirements of Code of Civil Procedure section 377.32. Petitioner merely states she is Ms. Green's next of kin. (See Sims Decl., ¶ 4.) There are no facts provided to support the assertion that Petitioner is Ms. Green's successor in interest.

IV.

CONCLUSION

The motion is DENIED WITHOUT PREJUDUCE.

Moving party to give notice.

Dated: September 16,
2026

Brock T. Hammond

Judge of the Superior Court